

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 5.12.030, LICENSES AND PERMITS-TYPES, OF CHAPTER 5.12, ALCOHOLIC LIQUOR AND MALT BEVERAGES, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, is hereby amended as set out in this ordinance.

5.12.030 - Licenses and permits—Types.

- A. The city is authorized, pursuant to ~~Wyo. Stat. Sections~~ W.S. 12-1-101, et. seq., to issue the following types of alcohol, microbrewery, winery, satellite, special event and malt beverage licenses and permits:
1. Bar and Grill Liquor License. The governing body may authorize issuance of a bar and grill liquor license to an applicant pursuant to ~~provisions of Wyo. Stat. Section~~ W.S. 12-4-413.
 2. Catering Permit. The city clerk may authorize issuance of a temporary catering permit to retail and resort liquor licensees authorizing off-premises sales of alcoholic liquor and malt beverages.
 - a. On behalf of the licensing authority, the city clerk is authorized to provide written approval to eligible city liquor licensees who wish to submit an application for a temporary catering permit within the jurisdiction of another liquor licensing authority within the state of Wyoming. Written request for approval must be submitted by the eligible licensee which contains information as required by the city clerk.
 3. Consumption Permit. The city clerk, with approval by the chief of police, may issue a temporary permit to applicants under the provisions of this chapter.
 4. Limited Retail Liquor License. The governing body may authorize issuance of a license to a club, as defined in ~~Wyo. Stat. Section~~ W.S. 12-1-101, to provide sales and service of alcoholic liquor and malt beverages within a licensed building to its members and their guests.

5. Malt Beverage Permit. The city clerk, with approval by the chief of police, may authorize issuance of a temporary permit to any responsible person or organization allowing malt beverages sales only at a picnic, bazaar, fair, special holiday or similar public gathering.
6. Malt Beverage Permit with Open Container Waiver. The city clerk, with approval by the chief of police, may authorize issuance of a temporary permit in conjunction with a special community-based event, waiving the city's open container restriction.
7. Manufacturer's Off-Premises Permit. The city clerk, with approval by the chief of police, may authorize issuance of a permit to the holder of a manufacturer's license, as issued by the Wyoming Liquor Division, pursuant to ~~provisions of Wyo. Stat. § W.S. 12-2-203~~, authorizing the permittee to sell product manufactured at the site identified on the manufacturer's license only for sales at meetings, conventions, private parties, dinners and other similar gatherings to promote their product. No permittee holding a manufacturer's off-premises permit shall sell or permit consumption of any of their manufactured product off the premises described in the permit. An off-premises permit shall be issued for one twenty-four-hour period, subject to the schedule of operating hours set pursuant to ~~Wyo. Stat. § W.S. 12-5-101~~ and Section 5.12.130 of this chapter. No holder of a manufacturer's license shall receive more than twelve (12) off-premises permits in any one calendar year.
 - a. In addition to the one additional license or permit authorized under ~~Wyo. Stat. Section W.S. 12-4-412(b)(iii)~~, the holder of a microbrewery or winery permit under this section may also hold a manufacturer's license under ~~Wyo. Stat. Section W.S. 12-2-203(a)~~.
8. Microbrewery Permit. The governing body may authorize issuance of a microbrewery permit to an applicant to provide for brewing and dispensing of malt beverages pursuant to ~~Wyo. Stat. Sections W.S. 12-2-201(e) and 12-4-415~~. The holder of a microbrewery permit may also hold a malt beverage permit under ~~Wyo. Stat. Section W.S. 12-4-502(a) and Section 5.12.100~~ of this chapter for the purpose of selling its own brewed malt beverages. An applicant may submit a written request to the governing body for approval of an outdoor fenced or enclosed area immediately adjacent to the licensed brewing site for the purpose of dispensing and consumption of its product pursuant to ~~Wyo. Stat. Section W.S. 12-4-415~~, and Sections 5.12.120(E) and 5.12.130 of this chapter.
9. Resort Liquor License. The governing body may authorize issuance of a license to an applicant for alcoholic liquor and malt beverage sales and service at a resort pursuant to ~~provisions contained in Wyo. Stat. Sections W.S. 12-4-401 and 12-5-201~~.
10. Restaurant Liquor License. The governing body may authorize issuance of a license to an applicant for sales and service of alcoholic liquor and malt beverages, as

prepared and dispensed from areas approved at a restaurant by the licensing authority pursuant to ~~Wyo. Stat. Sections~~ W.S. 12-1-101(a)(xiv) and 12-4-410.

- a. Qualifying food service restaurants shall have a suitable kitchen necessary for preparing, cooking, and serving individually priced meals which are prepared and served primarily for on-premises consumption and seating/dining areas that shall be inspected and approved by Cheyenne/Laramie County Health Department, Division of Environmental Health, and the licensing authority and are subject to requirements pursuant to ~~Wyo. Stat. Sections~~ W.S. 12-1-101(a)(xiv).
- b. No consumption of alcoholic or malt beverages shall be permitted within the dispensing areas pursuant to ~~Wyo. Stat. Section~~ W.S. 12-4-410(b).
- c. No restaurant liquor licensee shall promote or operate the restaurant as a bar and/or lounge pursuant to ~~Wyo. Stat. Section~~ W.S. 12-4-410(d).
- d. All sales of alcoholic or malt beverages authorized by a restaurant liquor license shall cease at the time food sales cease, or at the hours specified by Section 5.12.130(B) of this chapter if food sales extend beyond the hours specified therein.
- e. Restaurant liquor licensees shall submit, at the time of renewal, an annual report to the licensing authority that the primary source of revenue from the operation of the restaurant to be licensed will be derived from food services and not from the sale of alcoholic or malt beverages pursuant to ~~Wyo. Stat. Section~~ W.S. 12-4-408.
- f. Exceptions. Convenience stores whose primary function is for off-premises consumption of food sales are not eligible to obtain a restaurant liquor license.

11. Retail Liquor License. ~~The~~ In accordance with W.S. 12-4-201, the governing body may authorize issuance of a license to an applicant for direct sales and service of alcoholic liquor and malt beverages within a licensed building to patrons in a lounge or bar environment, which may include sales for off-premises consumption conducted through a separate room within the licensed building designated as a package store and/or through a drive-up facility adjoining the room as approved by the governing body.

12. Satellite Manufacturing Permit. The governing body, upon application, may authorize issuance of a permit to the holder of a manufacturer's license, as issued by the Wyoming Liquor Division, pursuant to ~~provisions of Wyo. Stat. Section~~ W.S. 12-2-203.

13. Satellite Winery Permit. The governing body, upon application, may authorize issuance of a permit to the holder of a winery permit pursuant to ~~the provisions of Wyo. Stat. Section~~ W.S. 12-4-412.
14. Special Event Permit. The city clerk, with approval by the chief of police, may authorize the issuance of a permit to a retail liquor licensee in conjunction with holding a special event in the licensed building of the licensee at which primarily persons under the age of twenty-one (21) years of age are permitted pursuant to ~~the provisions of Wyo. Stat. Section~~ W.S. 12-5-201(k).
15. Special Malt Beverage Permit. The governing body may issue an annual special malt beverage permit to any reasonable person or organization for sales of malt beverages only at public auditoriums, civic centers or events centers.
 - a. The public auditorium, civic center or events center shall be an enclosed building and shall contain an auditorium setting that seats at least two hundred fifty (250) persons and be used for public gatherings, events or entertainment. Written confirmation by the applicant must be provided with the application stating that the owner of the building authorizes the sale and consumption of malt beverages within the building for which the permit will be effective. If the applicant is not the owner of the building, a written lease agreement between the applicant and building owner must be submitted containing the authorization. As used in this section, auditorium setting means an area designated for the primary purpose of seating an audience to view or partake in an event or entertainment.
 - b. Upon application and any renewal application, the person or organization holding a special malt beverage permit must provide written confirmation to the city clerk that the owner of the building authorizes the sale and consumption of malt beverages within the building for the term in which the permit will be effective.
 - c. No permittee shall sell any malt beverages for off-site consumption outside of the building, and it shall be the responsibility of the permittee to ensure that no sales are made to nor any consumption allowed by any person under the legal drinking age within the licensed building.
 - d. No transfer of permit ownership or building location shall be allowed.
 - e. Provisions pertaining to "operational," as defined in Section 5.12.020, contained within this chapter do not apply to a holder of a special malt beverage (annual) permit.
16. Special Malt Beverage Permit for Events at Rodeo Arenas. Pursuant to ~~Wyo. Stat. Section~~ W.S. 12-4-507, the city clerk shall issue a special malt beverage permit for

the sale of malt beverages upon submission of a reasonable plan only at events conducted on the grounds of an indoor or outdoor rodeo with a total seating capacity of over seven thousand five hundred (7,500).

- 17. Winery Permit. The governing body may authorize issuance of a permit to an applicant for the manufacturing and dispensing of wines pursuant to ~~Wyo. Stat. Section~~ W.S. 12-4-414.
- 18. Winery-Off-Premises Permit. The city clerk, with approval by the chief of police, may authorize issuance of a permit to the holder of a Winery permit, pursuant to ~~provisions of Wyo. Stat. §~~ W.S. 12-4-414(g), authorizing the permittee to sell product manufactured at the site identified on the winery permit only for sales at meetings, conventions, private parties, dinners and other similar gatherings to promote their product. No permittee holding a winery off-premises permit shall sell or permit consumption of any of their manufactured product off the premises described in the permit. An off-premises permit shall be issued for one twenty-four-hour period, subject to the schedule of operating hours set pursuant to ~~Wyo. Stat. §~~ W.S. 12-5-101 and Section 5.12.130 of this chapter. No holder of a Winery permit shall receive more than twelve (12) off-premises permits in any one calendar year.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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